Kevin Turnage v. Phoenix Indian Medical Center

Brief in Support of Relief

I Kevin Turnage, a 50-year-old Caucasian male nurse, have brought EEOC and whistleblowers actions against the Phoenix Indian Medical Center (PIMC) for engaging in materially adverse actions in retaliation for me filing an EEO complaints for sexual harassment. Specifically, PIMC removed my supervisory duties, transferred me to a less desirable position, had me escorted off property by security, placed me on administrative leave, blocked all access to government systems, and subjected me to slander, libel, and other disparate treatment.

Factual Background

I began working as a nurse at PIMC in 2017 as a clinical nurse educator GS 0610 11 position. I accepted the position of Supervisory Clinical Nurse of Primary Care, Employee Health, and Behavioral Health clinics on March 28, 2022, a GS 0610 12 position. In 2023, I filed an EEO complaints against PIMC, alleging sexual harassment, age discrimination, sexual discrimination, hostile work environment, and racial discrimination. On March 21, 2023, I contacted IHS Headquarters regarding the failure of PIMC and the Phoenix Area Office failing to follow policies, procedures and laws regarding EEOC complaints and in less than two hours the materially adverse actions listed below began to occur.

Following the filing of my EEO complaints, I was subjected to a series of materially adverse actions.

1. On March 21, 2023, PIMC removed my supervisory duties.
2. On March 21, 2023, PIMC placed me on administrative leave and PIMC blocked all my access to government systems.
3. On March 21, 2023, following being placed on administrative leave PIMC had me escorted by security to my office to retrieve and surrender my laptop and then off property, again within hours of contacting IHS Headquarters.
4. Candace Lee the harasser was given the rest of the day off and coddled when first notified of my claim for being visibly upset. Thus, allowing Lee time to devise schemes with coworkers and subordinates to retaliate and deter me from moving forward with my allegations. The harasser has been treated fairer than I, the one harassed and discriminated against.

5. On March 31, 2023, as the PIMC acting CEO you detailed me to a less desirable position in a less desirable location for 120 days under the pretense that the detail was necessary for the efficiency of the service unit, would support the mission of the Agency, and would not impact my position of record or my compensation, for a position that had also been vacant for two almost three years. I have since been informed that I would not be returned to my position of record which is another materially adverse action and a form of retaliation taken by PIMC against me as an EEO filer and a whistleblower.
6. Brandi Benjamin, Candace Lee, Megan Wohr and Jason White conspired with each other and fabricated situations as a form of retaliating against me for exercising my rights and exposing Candace Lee for her sexually harassing me.
7. Jason White attempted to tamper with witnesses and he and Megan Wohr threatened a witness if they failed to sign the fabricated document or participate in their fabricated claims investigation.
8. On March 21, 2023, PIMC filed a false police report regarding alleged misconduct this is a materially adverse action as noted by the U.S. Supreme court which has clearly ruled to be a form of retaliation.
9. There was a supposed misconduct allegation that allegedly occurred on March 21, 2023. However, this has not been investigated to date and no one has spoken with me regarding the alleged conduct or informed me of what the alleged conduct was supposed to be. Management called the Phoenix Police regarding the fabricated allegation as verified by the Phoenix Police Department.
10. On March 23, 2023, Brandi Benjamin issued an illegal directive that also contradicted the policy she referred to in the directive. This directive had to be rescinded and reissued under the direction of the Office of Special Counsel.
11. PIMC has treated me markedly different than other employees that have filed hostile work environment and other EEO claims. PIMC has treated me differently than a 58-year-old dark skinned Native American female has had five hostile work environment claims filed against her, but she is allowed to remain in her position of record and continue to create a hostile work environment for other nurses. PIMC clearly has treated me as the individual who has been harassed differently that the aforementioned individual, the individual that harassed me and threatened me. PIMC treats males and nonnative employees differently than Native American Female employees.

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12. Candace Lee a female who harassed me remains in her role and I continue to be punished for exercising my rights under *the Equal Employment Opportunity (EEO) laws. Each of these laws prohibits retaliation and related conduct: Title VII of the Civil Rights Act of 1964 (Title VII), the Age Discrimination in Employment Act (ADEA), Title V of the Americans with Disabilities Act (ADA), Section 501 of the Rehabilitation Act (Rehabilitation Act), the Equal Pay Act (EPA), and Title II of the Genetic Information Nondiscrimination Act (GINA).*
13. PIMC has interfered with my protected rights as an employee to file a charge, testify, assist, or participate in any manner in an investigation, hearing, or proceeding under Title VII of the Civil Rights Act of 1964 (Title VII), 42 U.S.C.

Retaliation

The materially adverse actions taken against me were clearly in retaliation for my filing of EEO and whistleblower complaints. The timing of the actions is clearly retaliation. These actions were also taken after I had been outspoken to management about the discrimination and hostile work environment, me and other nurses have experienced at PIMC due to managements failure to implement actions to prevent the individual creating the hostile environment to continue harassing other employees when other nurses had put in writing and management was notified that they did not feel safe working with the individual.

Relief

I request the following:

- A declaration that the actions taken against me were in retaliation for my exercising a protected right.
- A directive to all management officials that the PIMC will not engage in further or future retaliation against me and if done will result in discipline in accordance with the second offense of discrimination and retaliation.
- A declaration that PIMC will not engage in any future actions that will interfere with my protected rights as an employee.
- Damages for the intentional infliction of emotional distress, slander, libel, and other losses in the amount equal to 1 weeks' pay for each month of the illegal detail to the current position.

- Return to my supervisory position of record over Primary Care, Employee Health, and Behavioral Health clinics.
- Implementation of retention bonus of 25% due to the position being hard to fill as it had been vacant for almost 3 years when I accepted the position.
- A full and complete investigation by an outside non IHS agency of the Phoenix Indian Medical Center for discrimination and retaliation.
- Mandatory in person training of at least 16 hours for harassment and discrimination for the management officials that fabricated stories and discriminated against me: Candace Lee, Brandi Benjamin, Megan Wohr and Jason White. Additionally, these management officials must be appropriately disciplined in accordance with federal laws and OPM guidance for first offense of retaliation and discrimination.

Conclusion

The current evidence clearly shows that PIMC has retaliated against me for filing an EEO and whistleblower complaints and further evidence will be obtained during the discovery phase of complaints. I am entitled to these requests for the aforementioned retaliatory and discriminatory acts by the Phoenix Indian Medical Center.

Respectfully submitted,

Kevin Turnage

Cc: File